

Iqbal Ahmad v. Kanpur Electricity Supply Co. Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 December 2009 · WRIT - C No. - 65190 of 2009 · **Writ disposed of; relegated to Electricity Supply Code remedy.**

HEADNOTE

Article 226 will not be exercised against an Executive Engineer's rejection of an objection to an unauthorized-use inspection report where the Electricity Supply Code affords an ample remedy.

FACTUAL SUMMARY

Kanpur Electricity Supply Company raided Iqbal Ahmad's premises and found him using electricity unauthorizedly. He challenged the inspection report. The Executive Engineer rejected that objection by order dated 2 April 2009, which he annexed to the writ petition. Ahmad contended before the High Court that the rejection rested purely on surmises and conjectures. The Division Bench did not examine the correctness of that order on the merits.

HOLDING-UNITS

INTERPLAY · UP-2005

alternative remedy — unauthorized-use inspection objection

HOLDING

A writ court will not interfere under Article 226 with an Executive Engineer's rejection of an objection to an unauthorized-use inspection report, the petitioner having an ample remedy under the Electricity Supply Code. ¶ 1

FLAG Court invoked the Electricity Supply Code generally; no clause was named.

PRINCIPLE TAGS

relegate-to-statutory-remedy Article 226 will not be exercised against an Executive Engineer's rejection of an objection to an unauthorized-use inspection report where the Electricity Supply Code affords an ample remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER'S 2.4.2009 REJECTION OF THE OBJECTION TO THE INSPECTION REPORT WAS BASED ON SURMISES AND CONJECTURES

¶ 1